

STATEMENT OF WORK
FOR
99TH Readiness Division
Job Order Contract (JOC)

District C

6 November 2024

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I. GENERAL

A. SCOPE OF WORK (SOW). This is an Indefinite Delivery, Indefinite Quantity (IDIQ) contract for construction efforts at US Army Reserves 99th Readiness Division Area of Responsibility, to include Delaware, Maryland, Virginia, and West Virginia. The map of District is provided as an attachment. Under the Job Order Contracting (JOC) program, it is the Government's clear expectation that projects executed against this contract shall exhibit superior quality, responsiveness, customer service as per each task order's SOW. Each construction project will be awarded as an individual task order issued against the basic contract, specifying real property maintenance, repair, alteration, and/or new construction. The Contractor shall furnish all materials, labor, equipment, and strategic planning necessary to accomplish the work. All communications MUST come through the PRIME Contractor, the Government will NOT accept communications directly from the subcontractor. The Contractor shall provide sufficient technical support and project management to assure quality, accuracy of estimates, accommodate a number of concurrent "active" projects, provide flexibility of design staff and subcontractor pool to handle rapid increases in work volume, perform according to schedule (including completion on time), and process submittals and payrolls in a timely manner.

B. WORK RESPONSIBILITY. The Contractor's work responsibility shall include all contractor planning, programming, administration, coordination, and management necessary to provide all work as specified in Task Orders and specific SOW. The work shall be conducted by the Contractor in strict accordance with the contract and all applicable Federal, State, and local laws, regulations, codes, or directives. The Contractor shall ensure that all work provided meets or exceeds critical reliability rates or tolerances specified or included in applicable documents. The Contractor shall provide related services such as pre award project development; project management; quality control (QC); preparation, review, and submission of required deliverables, and performance of all associated administrative work required to satisfy requirements specified under this contract and individual orders. The prime contractor is responsible for ensuring that any subcontractor is not debarred or on the excluded list in sam.gov. The PRIME Contractor is responsible to access the location or project at site visit, pre-construction meetings, status meetings and close out meetings. The contractor may be called to the site for an immediate issue; therefore the Government will require the prime contractor to be within a 7 hours response time to all locations within the Region C district.

C. CONTRACT EXECUTION DOCUMENTS. The following documents shall be used in the execution of work under this contract: (The latest edition at time of price proposal submission) RSMeans Work Book which is considered the Unit Price Book (UPB).

a. The approved cost estimating method shall be utilized for all applicable pricing under this contract. Government designated RSMeans Cost Data is the method for this contract and associated task orders and it shall be the sole source of pre-priced costs. Work tasks required for completion of specific project requirements that are not considered part of the "complete, in-

place construction" of UPB items or are not otherwise contained in the UPB are called non-pre-priced (NPP), and their use is defined herein. "Actual" market pricing is not relevant under this contract except when necessary for calculating non-pre-priced work tasks. Any difference between actual prices and UPB pricing shall not constitute grounds for failure to perform nor shall be grounds for any equitable adjustment in the price for the task order. It is the contractor's responsibility to obtain and maintain a current version of the RSMeans Cost Data. Contractor will provide confirmation that they have a current version of R.S. Means at time of contract award.

b. RSMeans Cost Data and Facilities Maintenance Data contains net unit prices for the description of work to be accomplished at the unit of measure identified. These net prices provide consideration for all direct labor, materials, and equipment costs necessary for development of complete proposal(s). **The contractor shall utilize Government format for task order price proposals. See Attachment 2.**

c. All indirect costs shall be covered by the Contractor's co-efficient(s). In addition to the costs defined in Appendix 1 and Section II. A, Definitions, the Contractor's co-efficient(s) shall include consideration for anticipated yearly inflation and or other market fluctuations occurring through the end of the calendar year in advance of acquisition of the updated Cost Data (unless the Contractor opts to procure updated cost data more frequently from the vendor at no additional cost to the Government.

2. Contract Technical Specifications

a. The Technical Specifications to be utilized under this contract shall be the Unified Facilities Criteria (UFC) for the purpose of specifying construction for the military services. The appropriate UFC may be accessed via the Internet. The Contractor shall note however that there is not necessarily a direct correlation between a particular specification number and a particular UPB Section number (e.g., Unified Facilities Guide Specifications (UFGS) 26 60 13 Low-Voltage Motors, and UPB Section 26 71 13 Motors), so the content of each applicable specification and UPB section will be reviewed for logical and reasonable applicability. These specifications may be further supplemented by the Government on a project-by-project basis as required with industry specifications, and result in no additional cost to the Government, provided that in the Government's view, the supplemental specification supports and does not conflict with or clearly exceed the work described in the applicable UPB line item(s).

b. The purpose of these specifications is to furnish concise industrial and/or commercial standards for work and/or materials used in the maintenance and repair, or construction of Government facilities. The specifications will be used to define and enforce minimum requirements to meet the Government Specifications during the construction phase of each task order.

D. CONTRACTOR QUALITY CONTROL PLAN (QCP). The Contractor shall provide and maintain an effective Contractor quality control/inspection system which will ensure that all work performed under the contract conforms to contract requirements whether constructed or

processed by the Contractor or procured from subcontractors or vendors In Accordance With (IAW) FAR clause 52.246-12. The approved Quality Control Plan will be applicable to all task orders.

1. Contractor shall establish a quality control plan to perform sufficient inspection and testing of all items of work, including that of his sub-contractors. The quality control plan shall ensure conformance with applicable specifications and drawings with respect to materials, workmanship, construction, finish, functional performance, and identification. The quality control plan will be established for all construction except where the technical provisions of the contract provide for specific Government control by inspections, tests, or other means. The Contractor's control plan will specifically include the surveillance and tests required in the technical provisions of the contract specifications. For purposes of the above description, shop manufacture or standard products are not defined as construction. Quality control personnel shall also be charged with the responsibility of policing Contractor's Safety Program. This duty shall be clearly set forth in the quality control plan submitted 10 days after contract award to the Government for review and approval. Contract Data Requirement List (CDRL) A001

2. The Contractor's quality control plan is the means by which he assures himself that his construction complies with the requirements of the contract plans and specifications. The controls shall be adequate to cover all construction operations, including both on-site and off-site fabrication and shall be keyed to the proposed construction sequence and shall include as a minimum at least three phases of inspection for all definable items or segments of work as follows:

- a. Preparatory Inspection: To be performed prior to beginning any work on any definable segment of work. To include a review of contract requirements; a check to assure that all materials and/or equipment have been tested, submitted, and approved; a check to assure that provisions have been made to provide required control testing; examination of the work area to ascertain that all preliminary work has been completed; a physical examination of materials and equipment to assure that they conform to approved shop drawings or submittal data and that all materials and/or equipment are on hand. The Contracting Officer's Representative (COR)/Regional Facilities Operations Specialist (RFOS) shall be notified in writing at least 48 hours in advance of the preparatory inspection.
- b. Initial Inspection: To be performed as soon as a representative segment of the particular item of work has been accomplished to include examination of the quality of dimensional requirements.
- c. Follow-up Inspection: To be performed daily or as frequently as necessary to assure continuing compliance with contract requirements, including control testing, until completion of the particular segment of work.

3. The Contractor shall maintain current records of all inspections and tests performed on an appropriate best commercial practices format (i.e. American Institute of Architects (AIA) format). These records shall provide factual evidence that the required inspection(s) or

test(s) have been performed, including type and number of inspections or tests involved; results of inspections or tests; nature of defects, causes for rejection, etc.; proposed remedial action; and corrective actions taken. The Contractor shall not build up or conceal any feature of the work containing uncorrected defects, and payment on deficient items will be withheld until they are satisfactorily corrected or other action has been taken as authorized pursuant to the Contract Clauses entitled "Inspection of Construction". These records must cover both conforming and defective items and must include a statement that all supplies and materials incorporated in the work are in full compliance with the terms of the individual task order. If any dispute exists, the Contracting Officer shall be immediately notified. Legible copies of these records must be furnished to the COR/RFOS/KO within 10 calendar days of each event.

4. The CQCP shall be maintained and updated as determined by the COR/RFOS/KO.
5. In the event the Contractor utilizes the service of a commercial testing laboratory, the COR/RFOS reserves the right to check laboratory equipment for compliance with the standards set forth in the contract specifications and to check the laboratory technician's testing procedures and techniques.

E. SAFETY. The requirements of Department of Labor, Occupational Safety and Health Administration (OSHA) Standards 29 Code of Federal Regulations (CFR) 1910 L 1926 or Engineer Manual (EM) 385-1-1, General Safety Requirements (whichever is the most stringent) shall be followed. A safety plan may be required at task order level and if so, shall be available to the COR/RFOS upon request. (CDRL A002.)

The contractor shall comply with AR 385-40 which requires that accidents and injuries be reported within one (1) calendar day to the COR/RFOS and Contracting Officer (KO). Failure to conduct operations under this contract on any subsequent task order in a manner consistent with the prescribed safety requirements may result in immediate orders for cessation of work by the KO.

1. The Contractor shall assume full responsibility and liability for compliance with all applicable regulations pertaining to the health and safety of personnel during the execution of work and shall hold the Government harmless for any action on his part or that of his employees or subcontractors which results in illness, injury, or death.
2. The contractor is responsible for safe storage and operational condition of all equipment utilized under this contract. Contractor shall secure vehicles and mobile equipment, when not in use, by removing the keys from key operated ignition or by other physical means. The Contractor shall ensure that all personnel including subcontractor personnel engaged in work under this contract are provided and use personal protective equipment (e.g., ear plugs/muffs, safety glasses, steel-toed boots, hard hats, etc.).
3. The contractor personnel will receive safety and fire prevention briefings as required per task orders.

4. If night operations are carried on, only by approval of the Contracting Officer, the Contractor will be required to furnish all plant, equipment, and labor necessary to ensure adequate illumination. Adequate illumination as used herein shall be construed as the minimum lighting required in order to provide safe working conditions for Contractor and Government personnel wherever work on this contract is in progress. The contractor and its subcontractor must provide communications to the RFOS/COR as to entering and leaving of the facilities.

There shall be sufficient light to permit the work to be performed in accordance with the plans and specifications and to permit complete inspection of all work.

5. The Contractor shall adopt and enforce an aggressive on-the-job seat belt policy for all employees when operating or riding in company-owned, rented or personally owned vehicles operated on federal property.

6. Confined Spaces Entry. Title 29 CFR 1910.146, OSHA (Confined Space Entry) sets forth the definitions of confined spaces and establishes responsibilities and procedures for protecting personnel that shall be entering, working in, and exiting confined spaces. A plan may be required as specified per task order.

7. The Contractor shall identify to the 99TH RSC DPW COR/RFOS any materials to be brought to a job site that have the potential to expose workers, occupants, and/or facilities to fire, explosion, or health hazards.

F. PHYSICAL SECURITY. In addition to Federal and State laws, the Contractor shall comply with security regulations imposed by the affected installation and/or the agency occupying the space where work is to be performed. Specific security requirements affecting each order will be identified within the applicable task order.

1. SECURITY AWARENESS. Unusual security requirements will be noted when applicable to each individual task order. The Contractor will exercise care to prevent unauthorized intrusions by locking gates, closing, and locking doors and windows, and performing similar actions. In the event that a breach of security occurs notwithstanding the Contractor's efforts to prevent it, he shall immediately notify the COR/RFOS/CO. The COR/RFOS May then direct the notification to local authorities having jurisdiction, reporting the occurrence, and explaining the nature of the violation.

2. SECURITY REQUIREMENTS FOR CONTRACTORS.

a. All prime contractors and subcontractors performing services or duties under this contract shall comply with security rules and regulations applicable to all persons entering a military installation.

b. Contractor and subcontractor personnel performing services within exclusion areas or other highly sensitive areas will be required to be escorted by an appropriately cleared and authorized individual at all times while in such areas.

3. **EMPLOYEE SECURITY CHECKS/IDENTIFICATION.** All personnel employed by the Contractor or any representatives of the Contractor entering a Government installation, enclave or facility shall conform to all security regulations which may be in effect during the contract period and may be subject to such checks as may be deemed necessary to assure that no violations occur. No employee or representative will be permitted on any installation when such a check reveals that their presence would be detrimental to the physical or operational security of the installation. The Contractor shall be responsible for providing positive identification of employees. The Contractor shall only hire US Citizens that speak and understand the English language, and those personnel duly authorized to be in the country legally, such as on a work visa or other federally recognized program.

G. RESERVE CENTER/INSTALLATION CLOSINGS. When an unforeseen Reserve Center or Installation closing occurs on a regularly scheduled workday, the Contractor shall be required to reschedule all affected work to days and times acceptable to the Government.

H. PERMITS, FEES, AND LICENSES (NON-ENVIRONMENTAL). All permits, licenses, taxes, payment of fines and penalties for noncompliance, and associated fees shall be the responsibility of the Contractor. Items covered by this requirement include but are not limited to building permits, fees associated with hot work permits, and/or State/City requirements for specially licensed or registered contractors to perform work. These costs are to be part of the coefficient rate.

I. SALVAGEABLE AND REPAIRABLE MATERIALS. Material or equipment classified by the Government as salvageable shall be stored or disposed of as specified in individual task orders. Otherwise, all materials removed and not reused in the projects shall become the property of the Contractor and shall be his responsibility for lawful disposal.

J. WORK SITE MAINTENANCE.

1. All scrap and debris caused by the operations under task orders shall be policed up and removed at the end of each working day and disposed of properly.

2. All non-usable construction debris (wood, concrete, inert building materials, demolition waste, etc.) will be the property of the Contractor and his responsibility for proper disposal. The Contractor shall dispose of such debris at a landfill licensed by the applicable State to accept such waste. Disposal of demolition waste shall be in accordance with applicable state regulations. Contractor shall provide all necessary forms and information for disposal to the landfill operator and applicable State environmental regulatory agency.

3. Building(s) affected by work under this contract shall be maintained weatherproof at all times. While a work effort is being put forth (from Issuance of an Order to Acceptance by the Government), the Contractor shall be responsible for protecting personnel, furnishings, and facilities from water damage, dust, dirt, etc., resulting from work of each task order. The Contractor shall restore all such damaged items to their original condition at no additional expense to the Government. The Contractor will not be held responsible for damages due to pre-existing leaks or leaks which develop during the work of this contract that are determined to be

unrelated to Contractor's operations. Excavations that are to be left open over-night shall be barricaded.

4. The contractor shall store all supplies and equipment IAW fire and safety codes at the location designated by/coordinated with the COR/RFOS.

K. GOVERNMENT EQUIPMENT ON SITE. The Contractor shall cover equipment that is to remain in place within the area of contract operations to protect it against damage or loss. The Contractor shall, as directed, store equipment removed in the performance of work or reuse the equipment in work as required by the particular order. Equipment temporarily removed shall be protected, cleaned, and replaced in equal to or better than its condition prior to starting work. Security for equipment or material that is to be reused and is removed for temporary storage shall be the sole responsibility of the Contractor. **The contractor is responsible for all costs associated with the moving and temporary storage of government property.**

L. TRUCKING. The Contractor shall load trucks leaving any work site with loose debris in a manner that will prevent dropping of materials on streets. The Contractor shall be responsible for cleaning up any materials that fall from trucks, and/or for damages caused thereby. Transportation of asbestos, hazardous materials/hazardous waste or general waste shall be carried out IAW Army, Federal, state, and local laws and regulations.

M. NOISE CONTROL. The Contractor shall comply with all applicable state and local laws, ordinances, and regulations relative to noise control.

N. MOVING OF FURNITURE. Furniture, portable office equipment, and wall accessories not rigidly fastened to the walls in the immediate area of work as specified in task order that is unable to be moved by the building occupant, shall be moved by the Contractor, protected from damage, and subsequently replaced to original position. Incidental costs associated with moving one-piece furnishings up to approximately 150 pounds to perform such tasks as painting, carpet, or tile replacement, etc. are considered a general cost of building renovation. If the work required by an order will not allow furniture and portable office equipment to be replaced to its original location, new locations will be designated by the COR/RFOS for replacement by the Contractor. (NOTE: Work of this nature shall be considered incidental to a project's requirements. It is not the expectation of the Government that the Contractor shall be required to move out complete sets of office/building furnishings and/or equipment without reasonable consideration).

O. DAMAGES. The Contractor shall take all precautions to ensure that no damage will result from his operations to private or public property. All damages resulting from the negligence of the Contractor shall be repaired or replaced by the Contractor at no cost to the Government.

P. INTERRUPTION OF UTILITY SERVICE. All temporary outages of any utility services required for the performance of work under this contract shall be scheduled with the COR/RFOS no less than seven (7) calendar days in advance of such outages, except in emergency situations as approved by the COR/RFOS; the Contractor may request a waiver from this requirement from the COR/RFOS when the utility outage will be of a very limited nature (e.g., within a few rooms of a building) and ample coordination has been made with the affected customer. If during work

performance, the Contractor has determined that a utilities related situation involves risk to life or substantial risk to property, utilities shall be immediately disrupted to reduce the emergency and alleviate the risk. If such a risk exists or if such a disruption does occur, the Contractor shall notify the COR/RFOS at the earliest practical time, and in no case later than 2 hours following the occurrence.

Q. DELIVERY OF MATERIALS. It is the responsibility of the Contractor to inform their vendors and truck drivers of the prime contractor's name, contract number and work site location for each delivery. Contractors will coordinate and provide escorts for suppliers' trucks from the perimeter gates to the job site as required. Delivery of materials and equipment shall be made with a minimum of interference to Government operations and personnel. Contractor is responsible for removing all materials from delivery trucks; at no time will any Government representative remove any materials from delivery trucks.

R. ENVIRONMENTAL PROTECTION. All work shall be performed in accordance with all Department of Defense, Department of the Army, Federal, state, and local laws, and regulations.

1. **CONTRACTOR EXPERIENCE AND KNOWLEDGE.** The Contractor and/or subcontractors shall be Federally, State or Locally Certified/Permitted to perform specific environmental work defined in the scope of an order, as required by the applicable authority having jurisdiction with explicit submission requirements included in the Request for Task Order Proposal (RTOP). It's the contractor's responsibility to ensure all subcontractors meet are licensed as required. Usually, licensure as a general contractor means that OSHA and Department of Transportation training and experience has been completed and the person is current.

2. **PERMITS, FEES, AND LICENSES (ENVIRONMENTAL).** All permits, licenses, and taxes required for performance of each task order and payment of fines, penalties, and associated fees for noncompliance or improper performance of applicable work shall be the responsibility of the Contractor.

3. **COORDINATION.** The Contractor shall coordinate and schedule all applicable work as specified on individual task orders with the appropriate Federal, State, and local government agencies, as required by those agencies.

4. **DISPOSAL OF MATERIALS/WASTES.** Drums and containers used during the course of work as specified on individual task orders shall meet the appropriate Department of Transportation (DOT), and Environmental Protection Agency (EPA) regulations for the materials/wastes they will contain. The Contractor shall manage, handle, and dispose of hazardous waste and special waste in accordance with all state, federal and local laws, and regulations. Copies of all applicable documentation shall be provided to the Government for approval 5 working days prior to shipment.

5. **DISPOSAL OF WASTE - NATURAL MATERIALS.** The Contractor shall dispose of wood chips, sawdust, leaves, and grass clippings generated by this project at a landfill licensed by the applicable State to accept such waste. The Contractor shall dispose of logs less than four inches (4") in diameter, and all limbs, twigs, and other brush at a landfill licensed by the applicable

State to accept such waste. The Contractor shall dispose of logs greater than four inches (4") in diameter, and twelve feet (12') or less in length by sale or retention for sale, or by disposal at a landfill licensed by the applicable State to accept such waste. The Contractor shall dispose of tree stumps and all other natural waste materials at a landfill licensed by the applicable State to accept such waste.

6. DISPOSAL OF WASTE - FILL MATERIALS. The Contractor shall dispose of clean waste fill materials (concrete, rock, asphalt, and soil) at an off-site location. The Contractor shall dispose of contaminated waste fill materials at a landfill licensed by the applicable State to accept such waste. The Contractor shall provide all necessary information for disposal to the landfill operator, including any required testing of materials and completion of forms required by the applicable State environmental regulatory agency.

7. DISPOSAL OF HAZARDOUS WASTE. Contractor shall dispose of any wastes classified as hazardous wastes under the Resource Recovery and Conservation Act (RCRA) in accordance with all federal, state, and local laws regarding storage, manifesting, shipment, treatment, and disposal of such materials. Notification to, and approval by the COR/RFOS and the applicable State Environmental Coordinator (or his/her representative) is required prior to any action related to disposal of hazardous waste.

8. MANIFESTS/DOCUMENTATION. The Contractor shall provide the generator, at each site, a properly prepared hazardous/special waste manifest each time waste is offered for transportation off site. A written Land Disposal Restriction Notice shall accompany each hazardous/special waste manifest, as required. The Contractor shall ensure the completed manifest is returned to the generator within 35 calendar days from the initial transporter's date of signature. The Contractor shall provide the generator at each site a certification of disposal statement for each hazardous/special waste manifest initiated. The Contractor shall also document all waste disposals by delivering to the COR/RFOS copies of the landfill disposal form signed and dated by the landfill operator which shows the nature, amount, and location of materials delivered to the landfill. In case of sale of logs or retention for sale of logs, the Contractor shall provide a signed statement indicating the disposition of the logs. Copies of this documentation shall be provided to the COR/RFOS/CO prior to requesting final payment on the affected order(s). Within 14 days of completion of a task order the Contractor shall provide a summary including weights of the construction and demolition debris generated during the project to the COR/RFOS/KO. The work outlined above is a subsidiary portion of the contract work and is assigned a value of 5% of the value of each affected project. The Contractor shall assign a value of that amount in the breakdown for progress payments. If the Contractor fails to maintain and provide environmental documentation as required herein, the Government will consider that satisfactory progress has not been achieved, thereby requiring the retention of 5% from any request for progress payment, on top of any other retainage applied for cause.

9. GENERATOR IDENTIFICATION NUMBERS. A listing of EPA and State Hazardous Waste Generator Identification numbers and the names of authorized representatives to sign necessary documents will be provided to the Contractor as required.

10. **TRANSPORTATION.** Transporting of material/wastes removed from the premises shall be in accordance with all state, federal, and local laws, and regulations. Name, address and identification numbers of Transporter to be utilized shall be provided to the Government for approval 10 business days prior to shipment. The Contractor shall certify to the COR/RFOS in writing that material/waste being shipped is properly classified, described, packaged, marked, and labeled.

11. **WASTE DESTINATION.** The Contractor shall utilize a RCRA approved Treatment, Storage and Disposal Facility (TSDF) or approved landfill.

12. **APPROVAL OF TSDF AND/OR LANDFILL.** The Government will have and exercise full and complete control over determining suitability of the TSDF. The Contractor shall submit (a minimum of 10 business days prior to shipment) for approval, the following information on the proposed TSDF:

- a. Name and Address;
- b. US EPA Identification Number and Site Code;
- c. Copy of current permit to operate a hazardous waste treatment, storage, and disposal facility; and,
- d. Final destination and method of disposition of hazardous waste.

13. **RECYCLING.** The Contractor shall recycle products in accordance with local, State, and Federal regulations.

14. **SPILLS.** Spills of hazardous materials/wastes, due to Contractor negligence, shall be cleaned up to the satisfaction of the governing regulatory agency (Federal, State or Local) at the Contractors expense. Spills must be reported immediately to the COR/RFOS, local Fire Department. Proper notifications shall be made to regulating authorities by Contract personnel within the specified time frames in accordance with all Federal, State and Local laws and regulations. Contractor shall provide verification, as required, that Contractor employees are properly trained in spill response and cleanup in accordance with all Federal, State and Local laws and regulations.

15. **WASTEWATER DISCHARGES.** All wastewater to be discharged or disposed of will be the responsibility of the Contractor. Disposal method shall be in accordance with all applicable Federal, State and Local laws and regulations.

16. **CONTAMINATION DISCOVERY.** In the event contamination is discovered during performance under this contract, the Contractor shall notify the COR/RFOS/KO within 2 hours of discovery. The Contractor shall cease all activity in the area of the discovered unidentified contamination and shall not commence work in that area until so directed by the KO. The Contractor shall contact the appropriate Federal, State, and local authorities to report the contamination within 24 hours of discovery.

17. **REPORTING.** The Contractor shall be required to prepare all required regulatory reports necessary for environmental compliance and submit them through the COR/RFOS, to the

appropriate environmental agency for review and approval. The Contractor shall certify his work, as accurate and true, each time a report is furnished. The Government will sign the reports as Owner/Operator and forward to the appropriate agency. All reports are required to be submitted on the original forms provided by the regulating agency. All reports shall be provided in a timely manner, so they arrive to the COR/RFOS a minimum of 10 business days prior to the regulated due date at the governing environmental agency. The Contractor shall prepare any and all reports required and insure specified regulatory time requirements are adhered to.

18. SAMPLING. The Contractor shall take any and all samples required at each site. Samples shall be collected using EPA approved sampling methods. Samples shall be tested in accordance with the EPA Method recommended for the contaminant of concern and bearing media, and all testing shall be performed by an accredited laboratory acceptable to the governing regulatory agency. The Government will take intermittent split samples for quality assurance at its discretion. The Contractor shall inform the COR/RFOS 3 business days prior to taking any samples. Contractor shall provide verification, as required, that Contractor employees are properly trained to perform sampling in accordance with all Federal, State and Local laws and regulations. Any and all laboratory results from sampling shall be provided to the COR/RFOS.

19. CHAIN OF CUSTODY PROCEDURES. Chain of custody procedures shall be employed for samples taken in accordance with all Federal, State, and local laws and regulations. Records shall be made available to the COR/RFOS on request.

20. RESTORATION. The Contractor shall perform all work required to achieve cleanup levels and restore site to the satisfaction of the governing regulatory Government agency. Cleanup shall be performed in accordance with all Federal, State and Local laws and regulations.

21. CORRESPONDENCE. The Contractor shall provide the KO, and the COR/RFOS copies of all correspondence with any environmental regulatory agency as required under this contract.

22. APPLICABLE LAWS, REGULATIONS, STATUTES AND ACTS. The Contractor shall adhere to applicable Federal, State, and Local laws and regulations. When there is a conflict, the most stringent shall apply.

23. ASBESTOS. All precautions, to include proper work practices, medical surveillance, respiratory protection, industrial hygiene requirements of OSHA (29 CFR 1910.1001 and 1926.58) and environmental protection requirements of EPA (40 CFR 61.140-156) and DA Circular 40-83-4, as applicable and as amended, shall be strictly adhered to. The Government will identify the known existence of asbestos in areas where work is to be performed under individual orders prior to the issuance of the order. However, the Contractor shall report any unforeseen findings of asbestos to the COR/RFOS prior to initiating any further actions in the area of discovery under the affected order. An abatement report describing the work performed, a copy of the Contractor's license, permits for the completion of the work and disposal manifests shall be provided to the COR/RFOS/KO.

S. ANTI-TERRORISM/OPERATIONS SECURITY

1. Access and general protection/security policy and procedures. *This standard language is for contractor employees with an area of performance within Army controlled installation, facility, or area.* Contractor and all associated sub-contractors' employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

2. For contractors that do not require CAC but require access to a DoD facility or installation. Contractor and all associated sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative), or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

3. For contracts that require OPSEC Training. Per AR 530-1 *Operations Security*, the contractor employees must complete Level I OPSEC Awareness training. New employees must be trained within 30 calendar days of their reporting for duty and annually thereafter.

II. DEFINITIONS AND ACRONYMS

A. DEFINITIONS. As used throughout this contract, the following terms shall have the meaning set forth below:

1. CO-EFFICIENTS:

a. The coefficient, also referred to as the "multiplier" or "factor", is the markup or markdown (discount) applied to the base IDIQ price to arrive at the contractor's price. The coefficient shall include all bonding anticipated bonding costs for task orders. No separate line item will be provided for bonding. For example, a coefficient of 1.08 means the contractor will perform line items in the unit price book for an 8% markup; a coefficient of .97 means the contractor will perform line items for a 3% discount. The coefficient is considered "fully loaded" and includes all costs including general conditions, overhead and profit. The coefficient may also include contractor's/subcontractors' costs in the local area, other market conditions, and/or client specific terms and conditions. RSM means does not specify any particular ones but here is a list, but not limited to, that we considered and what is considered "acceptable" as industry standards:

- Contractor's overhead and profit
- Subcontractors' overhead and profit
- Insurance
- All costs associated with bonding (specifically including bond premiums)
- Employee payroll taxes, insurance, and fringe benefits
- Business taxes, contributions, memberships, corporate headquarters support (legal, financial, etc.)
- All waste and excess material
- Sales tax on material and equipment costs
- Clean up
- Mobilization and close out for the total contract and each task order
- Compliance with environmental laws (overhead [indirect] costs associated with performing work in compliance with EPA/OSHA regulations, including obtaining any necessary licenses and permits, reporting requirements, etc.)
- Traffic and work site signs and barriers
- Project management and supervision
- Quality control
- Office management and equipment
- Depreciation of mobile office(s)
- Interest associated with funding of equipment and payroll
- Submittal preparation
- As built drawings
- Permits, licenses, and fees
- Other risks of doing business (i.e. risk of a lower-than-expected contract dollar value, risk of poor subcontractor performance)

Also see Appendix 1.

b. NON-PREPRICED (NPP): Multiplier to be applied against validated direct-price quotations for work not covered by the contract UPB. Coverage for the same issues as those for PREPRICED coefficients except the allowance for differences between UPB and location-specific Davis-Bacon wage rates (as this is not applicable), and consideration for actual/estimated inflation and or other market fluctuations occurring after UPB production through the end of the contract base period will not apply (i.e., coefficient shall be applied to "current" costs in lieu of dated UPB costs).

2. COMPLETE, IN-PLACE CONSTRUCTION. Work having all necessary or normal parts, elements, or steps provided at its specified location resulting in products that are fully functional, without the need for additional labor, materials, and/or equipment in order to reach its fully functional and intended state. Work includes fasteners, anchors, standard applicable testing, balancing, and commissioning.

3. CONTRACTING OFFICER (KO). A person duly appointed with the authority to enter into and administer contracts on behalf of the Government.

4. **CONTRACTING OFFICER’S REPRESENTATIVE (COR).** An individual designated in writing by the KO to act as an authorized representative of the KO to perform specific contract administrative and execution functions.

5. **DIRECT COSTS.** Costs directly attributable to the physical performance of a specified item of work.

6. **HAZARDOUS MATERIALS.** Refer to hazardous and toxic materials/substances included in Sub-parts H and Z of 29 CFR 1910 and to others as additionally defined in Fed. Std. 313. Those most commonly encountered include asbestos, polychlorinated biphenyl’s (PCB), solvents, petroleum and paints but does include others. The most likely products to contain asbestos are sprayed-on fire-proofing, floor tile, insulation, siding, roofing, boiler lagging/gaskets, and pipe covering.

7. **NON-PRE-PRICED (NPP) WORK.** Non-pre-priced items of work are those items required to provide the intended end product of a project that are not part of the contract UPB but can be utilized in accordance with the procedures defined in Section IV. If the negotiated NPP portion of a project > 10% of the total cost, the project is typically not appropriate for JOC and an order will not be issued for that particular project.

8. **QUALITY ASSURANCE.** Actions taken by the Government to assure that the quality of purchased work is acceptable and in accordance with the specified requirements of the contract/project order.

9. **QUALIFICATION STANDARDS.** Quantifiable and enforceable criteria negotiated with the Contractor, establishing minimum requirements and/or conditions necessary to successfully execute the responsibilities of a given position, against which applicants for employment are evaluated.

B. ACRONYMS

1. CLIN: Contract Line Item Number.
2. COR: Contracting Officer's Representative.
3. DPW: Directorate of Public Works.
4. EPA: Environmental Protection Agency.
5. GFE: Government Furnished Equipment.
6. GFM: Government Furnished Material.
7. IAW: "In Accordance With".
8. KO: Contracting Officer.
9. JOC: Job Order Contract.
10. NLT: Not Later Than.
11. NPP: Non-Pre-Priced.
12. PM: Government Project Manager.
13. RD: Readiness Division
14. RFOS: Regional Facility Operations Specialist
15. RTOP: Request for Task Order Proposal

- 16. SOW: Scope Of Work.
- 17. UPB: Unit Price Book.
- 18. USAR: United States Army Reserve
- 19. USARC: United States Army Reserve Center.

III. GOVERNMENT FURNISHED SERVICES

A. USE OF GOVERNMENT FURNISHED SERVICES. Use of Government furnished services shall be limited to the performance of individual task orders.

B. FACILITIES. If the scope of a project requires an extended presence by the Contractor at a given site, it is the Contractor's responsibility to provide any necessary trailers and/or storage rooms to house staff personnel, materials, and equipment used in performance of this contract. The Contractor shall provide and post a neatly lettered sign identifying the company name, telephone number(s) and emergency telephone number(s). Other information is at the option of the Contractor.

C. UTILITIES. The Government will furnish to the Contractor from existing Government facilities and without cost to the Contractor, water, and electrical power supply, as set forth below.

1. WATER

a. The Government shall furnish from existing Government facilities and without cost to the Contractor, any adequate supply water necessary for performance of task orders under this contract provided the Government will in no case furnish or install any required supply connections and piping for the purpose of implementing the availability of the water supply. It is the responsibility of the Contractor to determine the extent to which existing Government water supply source is adequate for the needs of this contract.

b. All taps, connections, and accessory equipment required in making the water supply source available will be accomplished by and at the expense of the Contractor. This shall include furnishing and installing an approved backflow preventer in any case where a possible contaminant could be introduced into the water supply, IAW applicable State regulations or as directed by the Government. All work in connection therewith shall be coordinated, scheduled and performed as directed by the COR/RFOS. Said taps, connections, and accessory equipment shall be maintained by the Contractor in a workmanlike manner in accordance with rules and regulations of the Government installation. Upon completion of the contract/order the removal of all taps, connections and accessories will be accomplished by and at the expense of the Contractor so as to leave the water supply source or facility in its original condition. Such removal shall also be subject to the direction and approval of the COR/RFOS as provided above.

2. ELECTRICITY.

a. The Government shall furnish from existing Government facilities and without cost to the Contractor, all electrical power necessary for performance of orders under this contract, provided that the Government will in no case furnish or install any new electrical facility or accessory for the purpose of creating the availability of electrical power for the purpose of this contract. It is the responsibility of the Contractor to determine the extent to which existing

Government electrical facilities are adequate for the needs of this contract, and to make alternate provisions as required.

b. All taps, connections, and necessary equipment required in making the electrical power available will be accomplished by and at the expense of the Contractor, and all work in connection therewith shall be coordinated, scheduled and performed as directed and approved by the COR/RFOS. Said taps, connections, and accessory equipment shall be maintained by the contractor in a workmanlike manner in accordance with the rules and regulations of the Government installation. Upon completion of the contract/order the removal of all taps, connections and accessories will be accomplished by, and at the expense of the Contractor so as to leave the electrical power source or facility in its original condition. Such removal shall also be subject to the directions and approval of the COR/RFOS as provided above.

3. TELEPHONE SERVICE. Any telephone services required will be the responsibility of the Contractor.

4. SANITARY CONVENIENCES. The COR/RFOS may permit the Contractor's personnel to use a toilet room at the building, if available. The Contractor will ensure that the toilet premises are maintained in a clean and sanitary condition on a daily basis. When working where toilet facilities are not available, the Contractor will furnish portable toilet facilities.

IV. SPECIFIC TASKS

A. PRE-ORDERING PROCEDURES.

1. The contractor will be notified in writing of pre-proposal meetings as necessary. In accordance with Fair Opportunity, all contractors will be granted a site visit at a specific time. If scheduled, site visit information will be included in individual RTOPs. The prime contractor must accompany all subcontractors to the site visits.

B. ORDERING PROCEDURES.

1. Upon establishment of the scope of the individual requirement, the Contractor shall then be requested to prepare their cost proposal for accomplishment of the project. Time for submittal of the Contractor's proposal will be specified in each project RFTOP (Cost Proposal). The submission shall be in accordance with Government provided format. Consideration for the development of the RTOP inclusion of items included in the co-efficient may deemed the RTOP illegible for task order award.

2. Each project cost proposal submitted by the Contractor shall consist of an itemized listing of all proposed items, quantities, extended prices, total proposed cost, as well as supporting documentation as outlined below. The approved R.S. Means cost data shall be used for this purpose.

C. WORK EXECUTION.

1. The Contractor shall be required to commence, prosecute, and complete the entire work not later than the completion time specified in the task order notice to proceed. The SF-1413 for all subcontractors must be provided prior to commencement of work on individual task orders. The time stated for completion shall include punch list items, final cleanup of the premises and submission of all deliverables. All orders are considered separate projects, and any decision by the Contractor to utilize a limited number of subcontractors on multiple orders shall not constitute grounds for non-performance, time extensions or avoidance of liquidated damages or other reductions for cause.

2. DELIVERABLES. After award of individual orders, the Contractor shall submit to the COR/RFOS (with copies furnished to the KO) a complete package of pre-construction deliverables which includes: notices of award of subcontracts, performance schedules, and material/product submittals no later than 14 calendar days after order award. All documentation required must come through the PRIME contractor no documentation submitted by the subcontractor will be accepted. This is to include but not limited to: pre-work documentation, submittals, O&M manuals, and close out documentation. The Government will make every attempt to respond to the pre-construction deliverables within 5 days of their submission. In any case, the contractor shall be ready to proceed with the work not later than 10 calendar days after issuance of an order or notice to proceed, except when emergencies demand early start dates as directed by the KO. Notices to Proceed will be issued after receipt and Government approval of bonds and insurance.

Post-completion deliverables such as completed warranties certificates, O&M manuals, environmental closure documents, etc. shall be provided prior to requesting final payment. The government reserves the right to hold a retainage on the task order until all documentation is received and approved by the Government. **COR/RFOS personnel will not accept the final invoice until all deliverables to include certified payroll for prime and sub-contractors and a properly completed DD Form 2626 has been completed** (Attachment 1).

3. SUBMITTALS. The Contractor shall prepare, material and/or equipment submittals (as required in individual task order SOWs) in sufficient detail to demonstrate conformance to technical specifications or other provisions defined in scopes of work. All required submittals shall be acquired and/or developed prior to submission to the Government at one time. The Contractor shall review all submittals for accuracy, completeness, and applicability prior to submission to the Government. Three (3) copies of all submittals shall be submitted to the COR/RFOS for review. Final distribution of reviewed submittals by the Government is: 1 copy to KO, 1 copy retained by COR/RFOS, and 1 copy returned to Contractor.

The following shall be submitted by the Contractor to the COR/RFOS and KO for approval, prior to the installation of any materials referenced by the technical sections herein, unless otherwise noted.

a. CERTIFICATES OF COMPLIANCE: The Contractor shall furnish in triplicate any manufacturer's certificates required for demonstrating proof of compliance of materials with

technical specification requirements in this contract. Each certificate shall be signed by an authorized officer of the manufacturing company and shall contain the name and address of the Contractor, the project name, location, and quantity and dates of shipment or delivery to which the certificates apply. Copies of laboratory test reports submitted with certificate shall contain the name and address of the testing laboratory and the date of the tests to which the report applies. Certification shall not be construed as relieving the Contractor from furnishing satisfactory material, if after tests are performed on selected samples, the material is found not to meet the specific requirements.

b. **SAMPLES:** The Contractor shall furnish samples of materials for approval, as required by the applicable sections of the technical specifications.

c. **DESCRIPTIVE DATA:** The Contractor shall furnish the manufacturer's descriptive data, installation instructions, and maintenance instructions, for approval, as required by the applicable sections of the technical specifications.

d. **TEST REPORTS:** The Contractor shall furnish copies of test reports for approval, as required by the applicable sections of the technical specifications.

e. **SHOP DRAWINGS:** The Contractor shall furnish shop drawings for approval, that consist of illustrations, schedules, performance charts, instructions, brochures, diagrams, drawings, and other information to illustrate and/or demonstrate compliance to the applicable sections of the technical specifications.

4. WORK COORDINATION.

a. **ADVANCE NOTIFICATION.** In anticipation of starting work on a project, the Contractor shall coordinate access to the affected facility with the appropriate Facility Manager or occupant point of contact a minimum of one week prior to the desired date of starting work, unless otherwise specified in the individual task order. Notification shall also be given to the appropriate COR/RFOS at that time.

b. **SCHEDULING WORK.** Unless otherwise specified, the Contractor will be permitted to do the work between the hours of 8:00 a.m. to 4:30 p.m., Monday through Friday exclusively. Federal holidays (New Year's Day, Martin Luther King Jr's Birthday, Presidents' Day, Memorial Day, Juneneeth Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, Christmas Day), that fall within the work week will not be considered workdays. Whenever a holiday falls on a Saturday or Sunday, the preceding Friday or following Monday respectively, will be observed as a holiday. Prior to the contractor performing work outside of the hours specified, the contractor shall submit a written request to the COR/RFOS. Requests for alternate work schedules shall be submitted to the COR/RFOS no less than 24 hours prior to the time the contractor desires to work. The areas in which the work is to be done may be occupied during the performance of work under this contract. Other maintenance and repair construction may also concurrently be performed in the building. The Contractor shall not receive any additional compensation due to the conditions brought about by this occupancy and usage by the Government. It shall be the Contractor's responsibility to coordinate with the

COR/RFOS, and to schedule and perform his work in such a manner as to create the least possible interference with the conduct of normal activities within the areas. The Contractor shall not block more than one access of the building at any time, nor shall he disrupt the existing parking arrangement at any of the building(s) parking areas.

A preconstruction conference may be scheduled by the KO after contract award and prior to commencement of work if requested by the Contractor and/or the Government. The KO will notify the contractor and the 99th RSC DPW of the time, date, and place set for the meeting which will be held at a location to be designated by the KO. At this meeting, the contractor will be oriented with respect to Government procedures and lines of authority, as well as contractual, administrative, and construction matters. The contractor is required to furnish a current Certificate of Insurance and a letter appointing a construction superintendent to the KO and the COR/RFOS within 3 days of contract award.

5. EXCAVATION PERMITS. The Contractor shall be responsible for obtaining excavation permits (when required) from local utilities (to include the DPW) in advance of performing work under an individual order. Copies of completed permits shall be provided to the COR/RFOS upon receipt.

6. QUALITY CONTROL. The Contractor is responsible for the quality control of all work awarded under this contract. Refer to Section I, paragraph D, Contractor Quality Control, for specific additional information.

7. JOINT PRE-FINAL AND FINAL INSPECTIONS. The Contractor shall notify the COR/RFOS when a project is ready for joint inspection. Punch-list items identified during the joint pre-final inspection shall be corrected prior to requesting a joint final inspection, and by a date established at the pre-final. If deficiencies still exist at the time of the final inspection, additional joint inspections will be required prior to acceptance of work.

8. ADVANCED NOTICE OF CONTRACTOR PERFORMED ACCEPTANCE TESTING: The Contractor shall notify the COR/RFOS in writing a minimum of 20 days in writing prior to performing any acceptance or testing of the following systems, including but not limited to, (1) Energy Management Control System (EMCS), (2) Fire Detection/Protection, (3) Intrusion Detection System, (4) Uninterruptible Power Supply, (5) Heating, Ventilation & Air Conditioning (HVAC), and (6) Pressurized Water systems. Advance notification is not required for testing performed as part of fabrication or installation.

9. CLEANING. The Contractor shall at the end of each working day remove from the site all debris resulting from the performance of work. The debris will not be dumped on Government property unless a non-government owned dumpster issued. If the Contractor uses a dumpster, it shall be emptied before becoming full as to spill onto the surrounding area. The area around the dumpster shall be kept free of debris. The daily cleaning work will not alleviate the Contractor from the responsibility of the final cleaning for acceptance, upon completion of all work.

D. PROJECT CLOSE-OUT.

1. RECORD DRAWINGS. During the progress of a particular project, the Contractor shall keep a careful record at each job site of all changes and corrections from the layouts shown on the project drawings, when required and as specified in the applicable task order. The Contractor shall promptly enter on the project order record drawings in red ink all such changes and corrections. Each sheet of the final corrected set shall be labeled with the marking: "RECORD DRAWINGS, AS-BUILT".

a. When site utility work is involved/affected, the record drawings shall indicate, in addition to all changes and corrections, the actual location of all identifiable sub-surface utility lines. In order that the location of these lines and accessories may be determined in the event the surface openings or indicators become covered over or obscured, the record drawings shall show, by offset dimensions to two permanently fixed surface features, the end of each run including each change in direction. Valves splice boxes, and similar appurtenances shall be located by dimensioning along the utility run from a reference point. The average depth below the surface of each run shall also be recorded.

b. At the time of beneficial occupancy of each structure or facility involved under the task order, the Contractor shall submit As-Built drawings showing the aforementioned information. The work outlined above is a subsidiary portion of the contract work and is assigned a value of 5% of the value of each affected project. The Contractor shall assign a value of that amount in the breakdown for progress payments.

If the Contractor fails to maintain and provide the record drawings as required herein, the Government will consider that satisfactory progress has not been achieved, thereby requiring the retention of 5% from any request for progress payment, on top of any other retainage applied for cause.

2. OPERATION AND MAINTENANCE MANUALS. Prior to final acceptance and payment of each order, the Contractor shall submit all operation and maintenance/service/overhaul/repair manuals to the COR/RFOS for HVAC systems, electrical controls, etc., and/or other systems or equipment as specified in the specific project task order. As specified in a particular task order scope of work, the Contractor shall conduct a training session to brief Government personnel on the operation and maintenance procedures of such systems. The work outlined above is a subsidiary portion of the contract work and is assigned a value of 10% of the value of the affective task order. The Contractor shall assign a value of that amount in the breakdown for progress payments.

3. WARRANTIES.

a. Manufacturer's warranties on installed equipment and/or systems shall be provided to the COR/RFOS prior to requesting final payment. The manufacturer's single-document extended (longer term) and/or expanded (e.g., labor & material with/without longer term) warranties may be specified on individual orders.

b. The Contractor shall provide warranty identification tags on all Contractor-furnished equipment which he installs under individual task order to the COR/RFOS. These tags shall be updated to reflect performance of warranty work as applicable.

i. Warranty tags shall be suitable for interior and exterior locations; resistant to solvents, abrasion, moisture, and fading due to sun-light, etc. These tags shall have a permanent pressure-sensitive adhesive back, and they shall be installed on equipment in locations that are noticeable. Equipment that has differing warranties on its components will have each component tagged.

ii. Sample tags shall be submitted to the Government for approval 30 days prior to contract completion. Warranty tags shall contain, as a minimum, the following information: manufacturer name, equipment model number, serial number, contract number, contractor name, contracting office address and point of contact, date installed, date base construction warranty expires, date manufacturer's warranty(ies) expires, date last repaired (under warranty).

4. DISTRIBUTION OF DOCUMENTS. Distribution of all close-out documents will be remitted following the conclusion of each Task Order as follows:

- 1 digital copy (CD) to Contracting Officer, to include certified payroll documents
- 1 digital (CD) and 1 paper copy to each facility identified on the Task Order
- 1 digital (CD) and 1 paper copy to the RFOS identified on the Task Order
- 2 digital (CD) and 1 paper copy to the 99th RSC Headquarters, ATTN: DPW Budget, 5231 South Scott Plaza, Joint Base McGuire-Dix-Lakehurst, NJ, 08640.

V. OTHER INFORMATION

A. OFF RAMPS: The Government reserves the unilateral right to Off-Ramp non-performing Contractors. Contractors that are Off-Ramped will not be eligible to compete for new TOs in the Pool in which they are Off-Ramped but will be required to continue performing active task orders until the period of performance of such orders ends. The Off- Ramp process under an IDIQ contract encompasses several methods by which the Government may exercise its right to remove a Contractor from a Pool of contract awardees. Examples of non-performance, includes, but is not limited to 1) A Contractor does not meet minimum requirements for participating in task order competitions as described in SOW paragraph IV, Specific Tasks, a Contractor does not meet the small business subcontract goals established in FAR 52.219-14 or 3) Unsatisfactory CPARS rating(s). The Off-Ramp methods include but are not limited to: (1) Contracting Officer determines that exercising an Option is not in the Government's best interest, therefore the Government would allow the Contractor's contract term to expire. (2) Debarment, suspension, or ineligibility as defined in FAR Subpart 9.405-1, 9.405-2 (3) Termination as defined in FAR Part 49.402, 49.403

B. Minimum Task Order Proposal Submittals. Awardees must participate actively in the IAC MAC vehicle by submitting at least one TO proposal per year in response to the Fair Opportunity Proposal Requests (FOPRs) released in the Contractor's Pool(s). If the Contractor holds a contract in more than one Pool, the minimum of one will be for all its Pools combined. Exceptions to this requirement may be made by the Contracting Officer if the Contractor is able

to provide a justifiable rationale for why it was not possible to meet this requirement. A “year” will be measured from the contract award date through one year thereafter, and each year subsequent to that period.

C. ON RAMPING: Consistent with FAR 16.504(c)(1)(ii)(A), the PCO has determined that it is in the Government’s best interest that at all times during the term of the Basic Contract, there remain an adequate number of contractors eligible to compete for Orders. Over time, the total number of contractors may fluctuate due to various reasons including industry consolidation, significant changes in the marketplace or advances in technology, general economic conditions, the Government's exercise of the off-ramp process, or other reasons. Recognizing this, the Government intends to periodically review the total number of contractors participating in the Ordering Process and determine whether it would be in the Government’s best interest to initiate on-ramping to add new contractors to the Basic Contract. **This is a discretionary unilateral authority of the Contracting Officer.**

VI. RSMMeans UNIT PRICE BOOK

The UPB is the RSMMeans Cost Works or R.S. Means as designated below. The terminology is interchangeable throughout this document.

The Costs Works are to include the following books for estimating available on RSMMeans.

A. ACQUISITION OF UNIT PRICE BOOK (UPB).

1. The contractor shall obtain at his own expense the most **current** version (at time of award) of the approved estimating software with the latest version of the RS Means Facilities Construction Cost Data and Facilities Maintenance & Repair Cost Data for their use during the base year of this contract, in as many licensed copies as required for his operation.
2. Annual price adjustment for each calendar year under this contract shall be made in the following manner: The contractor shall update, at his own expense, the Cost Data catalog database (compatible with the required estimating software) each time said catalog database is updated during the period of performance, in as many copies as identified for the initial year of the period of performance.

B. CONSTRUCTING PRICE PROPOSALS.

1. The contractor shall price all work using R.S. Means Facilities Construction Cost Data and Facilities Maintenance & Repair Cost Data. If an item is not included in the R.S. Means Facilities Construction Cost Data and Facilities Maintenance & Repair Cost Data, the contractor **may** then use RSMMeans pricing guides as appropriate before considering the item to be Non Pre-priced (NPP). All proposals are to be submitted on the Govnerment provided cost proposal format.

2. Generally, NPP Work does not exceed 10% of the RTOP pre-priced amount. Non Pre-priced work shall be manually entered into the estimate and noted on the contractor's proposal as non-pre-priced. The contractor's pre-priced coefficients shall not be applied to Non Pre-priced items.

C. UNIT PRICE BOOK APPLICATION CONSIDERATIONS.

1. DEMOLITION. Though there may exist associated components or "options" contained in or attached to an affected item or equipment scheduled for demolition, these components shall not be priced out separately for demolition unless the component must be removed before the demolition of the larger item can be completed.

2. ASSEMBLIES PRICING. Where applicable based on project requirements, and available in the UPB, assembly's unit pricing shall take precedence over individual component unit pricing.

3. LINE ITEM COST ADJUSTMENTS. The only adjustment of price for the construction line items is the contractor co-efficient (with the appropriate RSMeans Location Factor). All prices in the UPB are for complete and in-place construction unless explicitly described otherwise. Incidental fasteners (nails, screws, weldments, adhesives, or other connectors), incidental options/accessories, and small tools required for a normal installation are included in the line item cost unless the line item description specifically states otherwise. Line item prices include all work required to result in the end finish specified in the line item unless the line item description specifically states otherwise. Equipment costs include normal operating expendables and servicing including routine parts. All line item prices are valid to perform the work described to a height up to fourteen feet above finished floor or grade level unless the line item description specifically states otherwise. Testing, adjusting, balancing and start-up of installed equipment (normal commissioning) and up to four hours of familiarization training for operation and maintenance of that equipment, is included unless the line item description specifically states otherwise. Scaffolding/lifts, Staging, etc. will be allowed only on a Task Order basis, not per subcontractor or discipline.

END OF STATEMENT OF WORK

Appendix 1:

RSMeans Specific Language

The basis for the contractor's cost estimate shall be the prices published by The Gordian Group. Means publications and electronic data are available from the following source: The Gordian Group, at 1099 Hingham ST, Suite 201, Rockland, MA 02370, 800-334-3509. Estimates and proposals shall be based on the edition of R.S. Means Facilities Cost Data current at the time of the award and the respective quarterly updates.

The RSMeans Bare Costs for material, labor and equipment shall be adjusted by each Construction Specifications Institute subdivision per the city cost index closest to the JOC facility.

Contractor's Coefficient/Multiplier factor should include, but not necessarily be limited to:

- Contractor's overhead and profit
- Subcontractors' overhead and profit
- Insurance
- All costs associated with bonding (specifically including bond premiums)
- Employee payroll taxes, insurance, and fringe benefits
- Business taxes, contributions, memberships, corporate headquarters support (legal, financial, etc.)
- All waste and excess material
- Sales tax on material and equipment costs
- Clean up
- Mobilization and close out for the total contract and each task order
- Compliance with environmental laws (overhead [indirect] costs associated with performing work in compliance with EPA/OSHA regulations, including obtaining any necessary licenses and permits, reporting requirements, etc.)
- Traffic and work site signs and barriers
- Project management and supervision
- Quality control
- Office management and equipment
- Depreciation of mobile office(s)
- Interest associated with funding of equipment and payroll
- Submittal preparation
- As built drawings
- Permits, licenses, and fees
- Other risks of doing business (i.e. risk of a lower than expected contract dollar value, risk of poor subcontractor performance)

In addition, the following conditions shall not be priced separately in submitted proposals as they are performance expectations of work management and/or code requirements:

- a.) Work in phases
- b.) Work in areas restricted by security
- c.) Work in occupied areas
- d.) Working through/above ceiling grids or below raised computer floor (excluding removal of asbestos containing material)
- e.) Work in congested space
- f.) Allowances for utility and equipment outages, including lockout/tagout and circuit verification in the field
- g.) Work in critical areas
- h.) Safety and health training

The following items in the R.S. Means Division 1 unit price section shall also be included in the coefficient/multiplier (and not separately priced in individual proposals):

<u>SECTION</u>	<u>TITLE</u>
01 11	Summary

01 21	Allowances
01 31	Project Management and Coordination
01 32	Construction Progress Documentation
01 41	Regulatory Requirements
01 51	Temporary Utilities
01 52	Construction Facilities
01 54	Construction Aids
01 55	Vehicular Access and Parking
01 56	Barriers and Enclosures
01 58	Project Sign
01 74	Clean Up
01 91	Commissioning

In addition to the above listed R.S. Means Unit Price Items, the following items shall also be included in the contractor's coefficient/multiplier and shall not be separately priced in submitted proposals:

- a.) All equipment costs for work up to 14' above finished floors (i.e. ladders, manlifts, rolling scaffolding, etc.)
- b.) Equipment costs for traffic cones, safety tape, caution tape, and personal protective equipment (i.e. fire and chemical resistant clothing, respirators, gloves, face masks, environmental suits, safety glasses, etc.)
- c.) Equipment costs for small, commonly used tools of the trade

Pricing methods and procedures in the Reference Section of Means Facilities Cost Data shall be applied to applicable unit prices in the unit price section.

ATTACHMENT(S):

- 1. DD FORM 2626
- 2. Contractor cost breakdown proposal worksheet
- 3. SF 1413

Exhibit A-CDRL A001 Quality Control Plan
Exhibit B-CDRL A002 Safety Plan